	STANDARD OPERATING PROCEDURE State Form 39870(R/S-06)	Reference Number LEG-008
	Subject Social Media Usage by Employees for Personal or Department Purposes	
	Special Instructions New	Effective Date **July 21, 2025**

I. PURPOSE

The purpose of this policy is to provide guidance for department employees regarding the use of social media for personal or departmental purposes.

II. POLICY

The Department recognizes the right of employees to participate in Social Media platforms. However, employees must ensure that their online content is consistent with the Department's standards of conduct. This policy is not intended to prohibit activity by members that is protected by the First Amendment. Employees are free to express themselves as private citizens when speaking on matters of public concern to the extent that their interests in engaging in such speech is not outweighed by the Department's interest in avoiding workplace disruption and promoting efficient operations. Speech that impairs discipline by supervisors, impedes the performance of the speaker's duties, disrupts harmony among co-workers, interferes with the regular operation of the enterprise, undermines the mission of the Department, conflicts with Department policy, constitutes an abuse of authority, or otherwise impairs public accountability may be subject to discipline. The foregoing considerations may apply whether the workplace disruption is actual or reasonably anticipated. Such instances will be evaluated on a case-by-case basis.

Employees are cautioned that as public employees, speech made pursuant to their official duties, whether on or off duty, is not protected under the First Amendment and may be subject to discipline if it is deemed detrimental to the Department.

III. DEFINITIONS

A. DEPARTMENT SOCIAL MEDIA – An account established to further a Departmental interest such as spreading public awareness, recruiting, promoting the Department, etc. These accounts may only be authorized by the Superintendent as outlined in this policy.

B. PERSONAL SOCIAL MEDIA – A personal account established by a user with a third-party social media provider (Facebook, Instagram, etc.) that is not officially affiliated with the Indiana State Police. For the purposes of this policy, social media account(s) established or administered by employees of the Department for fraternal or charity organizations, off-duty employment, civic or community organizations, etc., are also subject to the provisions of this policy.

C. SOCIAL MEDIA/NETWORKS – internet-based platforms and technologies that allow users to create, share, or interact with content, including but not limited to Facebook, X (formerly Twitter), Instagram, TikTok, YouTube, LinkedIn, Reddit, blog, and other platforms that allow sharing of user post/opinion such as a news media comment section.

D. SPEECH – the expression of ideas, opinions, or beliefs, whether verbal, written, visual, or symbolic. This includes digital expressions such as emojis, hashtags, "likes," shares, reposts, and other interactive features commonly used on social media.

IV. PROCEDURE

A. Official Department Use of Social Media

1. All Department operated or affiliated accounts shall be approved by the Superintendent.

2. The following are expressly authorized to create, operate, and/or maintain social media accounts on behalf of the Department:

a. Each Public Information Officer (PIO) for their area of assignment;
b. Human Resources Recruiting Section;
c. ISP Training Academy; and
d. ISP Museum.

3. Divisions operating a social media account shall designate an employee responsible for monitoring the account.

4. All Department approved social media accounts, content, and data are the property of the agency and subject to applicable law and policies.

5. All Department operated or affiliated social media accounts shall be created utilizing an official agency e-mail address.

6. If an employee that is responsible for a Department social media account is on leave for more than 21 days or is retiring, the employee shall ensure that the account be accessible by another Department or Division authorized user.

7. If a Department social media account is being deactivated, it must be archived and preserved in accordance with the appropriate retention schedule.

8. Department social media account(s) may be used for:

a. Community engagement and outreach;
b. Recruiting employees/promoting employment opportunities;
c. Public safety education;
d. Crime prevention tips;
e. Department event promotion;
f. Public service announcements (such as road closures, weather events, emergency alerts, etc.);
g. Investigative support:

(i) Requesting public tips;
(ii) Sharing suspect descriptions or other information (as approved for release);

(iii) Disseminating information on wanted or missing persons.

9. Account monitoring and moderation:

a. Only Department employees, acting in their official capacity, are authorized to post to official or affiliated Department social media accounts.

b. Any moderation of comments by the responsible Department employee(s) of the social account shall be content (viewpoint) neutral.

c. Accounts may be established to allow comments from the general public.

d. Social media accounts that allow for comments from the general public must post ISP Comment Moderation Policy, as approved by ISP Legal Office, on their social media page.

(i) Comments may be removed for the following:

(a) Incitement to violence or criminal activity;
(b) Threats, harassment, or hate speech directed at a third party;
(c) Obscenity or sexually explicit content;
(d) Commercial advertisements, solicitations, spam, or possible scams;
(e) Disclosure of confidential, personal, or sensitive information;
(f) Content violating copyright or intellectual property rights; or
(g) Links to malware, harmful software, or phishing sites.

10. Employees shall not utilize Department social media accounts to engage in political activity or speech while on or off-duty.

B. **Personal Use of Social Media**

1. Department employees are prohibited from using an official Department email account when establishing a personal social media account.

2. Department employees are encouraged not to utilize their personal social media accounts for investigative activities.

3. Department employees shall utilize Department technology in accordance with CIS-006.

4. Employees may express themselves as private citizens on matters of public concern, consistent with First Amendment protections, so long as such speech does not:

a. Impair discipline or harmony among co-workers;
b. Disrupt the agency's mission or operations;
c. Undermine public confidence in the Department;
d. Conflict with job responsibilities; or
e. Violate the law or Department policies.

5. To maintain public trust and operational integrity, employees shall not:

a. Use their title, position, badge, or departmental imagery to imply endorsement by the Department.

b. Post content that discloses investigative, confidential personnel, or operational information that is not generally available to the public.

c. Publish or share personal content that depicts or implies on-duty conduct unless expressly authorized.

d. Post images in uniform or with official identifiers unless they are neutral and clearly of a personal context that does not suggest endorsement by the Department (e.g. family photo, neutral community event, and does not imply Department endorsement).*

e. Display Department equipment, weaponry, vehicles, or tactical tools in a manner that is unprofessional, provocative, harassing, intimidating, or misleading.

f. Engage in social media conduct that could reasonably interfere with courtroom credibility, investigations, or community relationships. This includes posting, sharing, liking, or otherwise disseminating content that could be perceived as:

(i) A bias or prejudice in regard to:

(a) Race;
(b) Ethnicity;
(c) Religion;
(d) Sex (gender);
(e) Sexual orientation;
(f) Disability;
(g) Any other recognized protected class under state or federal law.

(ii) Advocating harassment, violence, or illegal activity;
(iii) Defamatory, pornographic, propriety, or libelous comments.

*NOTE – If utilizing a Department photograph for political office, an employee shall submit an Announcement for Candidacy to Political Office Form and receive approval prior to posting any image associating the employee with the Department. *See* Regulation 6.

C. General

1. Personnel are advised that social media content, regardless of privacy settings, may be accessed in internal investigations, civil litigation, or criminal proceedings. There is no reasonable expectation of privacy for activity in any social media site that can be accessed by third parties.

2. Removal or deletion of content that has been reported to the Department will not prevent the Department from subjecting an employee to discipline in accordance with Regulation 7, IIS-001, and IIS-002.

3. Employees are advised that associating their personal social accounts with Department employment may subject themselves to harassment such as “trolling,” present a safety concern, or other harm.

D. This procedure is to be used in conjunction with all relevant Department regulations, rules, policies and procedures.